

বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ
আপীল সম্পর্কিত
ফৌজদারী

জেলা: Sirajganj ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন
নং

Korban Ali আবেদনকারী
মাধ্যম Mr. Khandoker Sultan Ahmed, Advocate
বনাম

The State and another

Ms. Shiuli Khanom, D.A.G along with
Mr. S.M. Emamul Musfiquir, A.A.G
Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	11.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 291 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 291 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite party to show cause as to why the judgment and order dated 22.11.2023 passed by the learned Additional Sessions Judge, 3rd Court, Sirajganj in Criminal Appeal No. 10 of 2015 dismissing the appeal and thereby affirming the judgment and order of conviction and sentence dated 14.01.2015 passed by the learned Chief Judicial Magistrate, Sirajganj in G.R. Case No. 60 of 2006 (Kazi) arising out of Kazipur Police Station Case No. 07 dated 11.05.2006 convicting the convict petitioner under section 326 of the Penal Code, 1860 and sentencing him to suffer rigorous imprisonment for 07 (seven) years and also to pay fine of Tk. 5,000/- (five thousand) in default to suffer simple imprisonment for 06 (six) months more should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশৰ ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Korban Ali, son of Fozu Mondol be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Chief Judicial Magistrate, Sirajganj. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o

দ্রষ্টব্যঃ কালা কালিত অফিস নোটৰ একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টৰ আদশৰ আরকটি ক্রমিক নম্বর হইব।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩